

Suraj Bhan v. State of U.P. — Clause 6.15 two-year bar relegated to licensee

High Court of Judicature at Allahabad · Division Bench · 18 January 2021 · Writ-C No. 27349 of 2020 · WRIT - C No. - 27349 of 2020 · **Writ disposed; representation in four weeks; recovery stayed**

HEADNOTE

Without deciding whether seventy months' arrears and successive demand notices were barred by Section 56(2) of the Electricity Act, 2003 and Clause 6.15 of the U.P. Electricity Supply Code, 2005, the Allahabad High Court disposed of the writ by directing the licensee to decide the consumer's pending representation by a reasoned speaking order after hearing, within four weeks, and stayed coercive action on the recovery citation in the meantime.

FACTUAL SUMMARY

Suraj Bhan sought quashing of demand notices dated 17 November 2016, 18 November 2017 and 27 July 2020, an undated recovery certificate, and restoration of supply. He alleged that a revised demand for seventy months' arrears and a 12 March 2019 disconnection notice violated the two-year bar in Section 56(2) of the Electricity Act, 2003 and Clause 6.15 of the U.P. Electricity Supply Code, 2005. His 14 August 2020 representation to the licensee was still pending. Counsel for the licensee asked for time to decide it.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.15

two-year limitation on recovery of arrears

HOLDING

A writ challenging demand notices and disconnection as barred by Clause 6.15 and Section 56(2), where the consumer's representation on that bar remains pending, is disposed of without a merits decision by directing the licensee to decide the representation by a reasoned speaking order after hearing, with coercive recovery stayed meanwhile. ¶ 1

PRINCIPLE TAGS

clause-6.15-two-year-limitation-relegated-to-authority

The Court did not decide whether seventy months' arrears fell outside Clause 6.15 and Section 56(2); it relegated the pending representation on that bar to the licensee for a speaking order and stayed coercive recovery in the interim. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE SEVENTY-MONTH ARREARS, DEMAND NOTICES DATED 17.11.2016, 18.11.2017 AND 27.07.2020, AND THE 12.03.2019 DISCONNECTION ARE BARRED BY SECTION 56(2) AND CLAUSE 6.15
Court expressly declined to express any opinion on the merits ¶ 1